

Constitutional Bodies, Statutory Bodies and RTI - The Foundation Track

Chapter F1.11 — From Zero: The Three-Fact Rule Applied Systematically, and the Act That Lets a Citizen Ask You Questions

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NOTE · HOW TO USE THIS DOCUMENT

A chapter of classifications, built on the three-fact rule that answered five questions in the verified 2023 paper. It works systematically through the constitutional bodies - the Election Commission with its composition history and the 2023 appointments Act, the UPSC and State Public Service Commissions with the removal procedure that protects them, the Comptroller and Auditor General as the guardian of the public purse and his relationship to the Public Accounts Committee from F1.5, and the National Commissions for Scheduled Castes, Scheduled Tribes and Backward Classes with the amendment that made the last of them constitutional. It then covers the principal statutory bodies most often confused with constitutional ones - the NHRC, the CVC, the Lokpal, the CIC and the NCW - and the National Commission for Women's status. It closes on the Right to Information Act 2005: the definition of information and public authority, the time limits, the exemptions, the appellate structure, the 2019 amendments, and the direct application to EPFO as a public authority whose officers answer RTI applications about the very orders taught in F3.4. Study time 3 hours.

This is the FOUNDATION layer. Constitutional provisions and the statutory basis of each body are settled. Composition of the Election Commission has changed by statute and current strengths of several commissions are notified figures marked CONFIRM. The Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act 2023 is stated as enacted; litigation concerning it is noted where relevant.

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0. The Three-Fact Rule, Applied Systematically

The most reliable marks in Module 1, earned by a technique you already have from F2.10.

PYQ CONNECTION · WHY THIS CHAPTER IS HIGH-YIELD, AND THE EXACT TECHNIQUE

Recall from **F2.10** the **THREE-FACT RULE** for institutional questions, and the evidence for it. In the verified 2023 paper, **five questions** were answered by that single technique: **CAMPA** (which Ministry regulates the fund), **BIRAC** (its objectives), **eSanjeevani** (its purpose), the **Department of Economic Affairs** (its function), and the **National Health Policy's 2.5 per cent of GDP** target.

Every one was answerable by three facts:

- 1 **NATURE** - constitutional, statutory, executive, a fund, a scheme, or an attached office
- 2 **PARENT** - which Ministry or authority
- 3 **ONE distinctive number or function**

This chapter applies that rule to the institutions of Module 1, and the single most valuable output is the **classification** itself. **Getting the CATEGORY right is usually worth more than getting the detail right**, because the commonest wrong option in an institutional question is one that misclassifies the body.

The classification that matters most, stated at the outset so the whole chapter can be read against it:

- 1 **CONSTITUTIONAL** - created by the Constitution itself: **Election Commission (Art 324)**, **UPSC and State PSCs (Art 315)**, **CAG (Art 148)**, **Finance Commission (Art 280)**, **Attorney General (Art 76)**, **Advocate General (Art 165)**, **GST Council (Art 279A)**, **Inter-State Council (Art 263)**, **National Commission for SCs (Art 338)**, **National Commission for STs (Art 338A)**, **National Commission for Backward Classes (Art 338B)**
- 2 **STATUTORY** - created by an Act of Parliament or a State Legislature: **NHRC**, **CVC**, **Lokpal**, **Central Information Commission**, **National Commission for Women**, **EPFO**, **ESIC**, **Zonal Councils**, **National Green Tribunal**, **SEBI**, **TRAI**
- 3 **EXECUTIVE** - created by a Cabinet resolution or executive order: **NITI Aayog**, **the Labour Bureau**, **DGMS**, **DGFASLI** (the last three being attached or subordinate offices, per F2.10)

Learn that three-way split before anything else in this chapter. Everything else is detail hung on it.

STUDY SESSION · CHAPTER F1.11 - THE FIVE SESSIONS

- 1 **Session 1 - The Election Commission** (Section 1)
- 2 **Session 2 - UPSC, State PSCs and the CAG** (Section 2)
- 3 **Session 3 - The three National Commissions** under Articles 338, 338A and 338B (Section 3)
- 4 **Session 4 - The statutory bodies most often misclassified** (Section 4)
- 5 **Session 5 - The Right to Information Act 2005**, applied to EPFO (Section 5)

Then **42 graded questions**. Budget **four sessions**, about **a day and a half**.

1. Session 1 - The Election Commission ★★★★★

MUST MASTER · ARTICLE 324 - COMPOSITION AND THE APPOINTMENTS QUESTION

- Article 324(1)** - The **superintendence, direction and control of the PREPARATION OF THE ELECTORAL ROLLS** for, and the **CONDUCT OF**, all elections to **PARLIAMENT** and to the **LEGISLATURE OF EVERY STATE** and of elections to the offices of **PRESIDENT** and **VICE-PRESIDENT** shall vest in the Election Commission
- Note carefully what is NOT included: elections to PANCHAYATS and MUNICIPALITIES.** Those vest in the **State Election Commission under Articles 243K and 243ZA** - the F1.9 point. **This is a favourite trap**
- Article 324(2)** - The Commission shall consist of the **Chief Election Commissioner** and **such number of other Election Commissioners, if any, as the President may from time to time fix**

The composition history, which is examinable:

- 1950 to 1989** - a **SINGLE-MEMBER** body: the CEC alone
- 1989** - briefly made **multi-member**
- 1990** - reverted to single-member
- 1993 onwards** - **THREE-MEMBER** body: the **Chief Election Commissioner** and two **Election Commissioners**. This is the current position

Decision-making: where the Commissioners differ, the matter is **decided by MAJORITY**. The CEC **has no casting vote and no superior authority in decision-making** - the three are of **equal status**, with equal salary and powers.

Tenure and removal - the asymmetry that is the most tested fact:

- Term: six years or until the age of 65, whichever is earlier** (prescribed by statute, not the Constitution)
- The CHIEF ELECTION COMMISSIONER shall NOT BE REMOVED FROM HIS OFFICE EXCEPT IN LIKE MANNER AND ON THE LIKE GROUNDS AS A JUDGE OF THE SUPREME COURT** - so the same double-majority address of both Houses on proved misbehaviour or incapacity that F1.7 taught
- Any OTHER Election Commissioner shall not be removed from office EXCEPT ON THE RECOMMENDATION OF THE CHIEF ELECTION COMMISSIONER**

Read that asymmetry precisely, because it is the point of the provision and the paper knows it. The CEC has **judge-like security**. The other two Commissioners do **not** - they can be removed on the CEC's recommendation. **So the constitutional protection is unequal**, and this has been criticised on the ground that it leaves the two Commissioners dependent on the CEC despite their equal decision-making power.

THE 2023 APPOINTMENTS ACT. Appointments were historically made by the **President on the advice of the Council of Ministers**, with no statutory process. In **Anoop Baranwal v Union of India (2023)** the Supreme Court directed that appointments be made by a committee of the **Prime Minister, the Leader of the Opposition in the Lok Sabha and the Chief Justice of India**, until Parliament legislated.

Parliament then enacted the **Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act 2023**, under which the **Selection Committee consists of the PRIME MINISTER, a UNION CABINET MINISTER, and the LEADER OF THE OPPOSITION** in the Lok Sabha - replacing the Chief Justice of India with a Cabinet Minister. A **Search Committee** headed by the Cabinet Secretary shortlists candidates.

The controversy is obvious and should be stated neutrally: the 2023 Act substituted a Government-majority committee for the judicially-directed composition that had included the CJI, and this has been challenged. For the exam, **know the Act's composition as enacted**, and note the litigation.

Other powers worth knowing: the Commission **registers political parties** and **recognises national and State parties** and allots symbols under the Symbols Order; it advises the President or Governor on **post-election disqualification** of sitting members; and it enforces the **Model Code of Conduct**, which is **not statutory** but rests on the Commission's Article 324 powers and party consensus.

CHECK YOURSELF · SESSION 1

- 1 What does Article 324 cover, and what does it conspicuously NOT cover?
- 2 Trace the Commission's composition from 1950 to the present
- 3 How are differences among the Commissioners resolved? Does the CEC have a casting vote?
- 4 State the term of office
- 5 State the removal protection for the CEC and for the other Commissioners, and explain the asymmetry
- 6 What did Anoop Baranwal 2023 direct, and what did the 2023 Act provide instead?
- 7 Is the Model Code of Conduct statutory? On what does it rest?

2. Session 2 - UPSC, State PSCs and the CAG



MUST MASTER · ARTICLES 315-323 - THE PUBLIC SERVICE COMMISSIONS

- 1 **Article 315** - There shall be a **Public Service Commission for the Union** and a Public Service Commission **for each State**. Two or more States may agree to have a **JOINT State Public Service Commission**, constituted by **Parliament by law on a resolution of the Houses of those State Legislatures**
- 2 **Composition - Article 316**: the **Chairman and other members** of the UPSC are **appointed by the PRESIDENT**; of a State PSC, by the **GOVERNOR**. **The Constitution does not fix the number** - it is determined by the President or Governor
- 3 **Qualification requirement**: **as nearly as may be, ONE-HALF of the members shall be persons who have held office for at least TEN YEARS under the Government of India or a State Government**. This is the only composition requirement the Constitution prescribes
- 4 **Term**: **SIX YEARS or until the age of SIXTY-FIVE for UPSC members, whichever is earlier; SIX YEARS or the age of SIXTY-TWO for State PSC members**. The 65 / 62 pair mirrors the Supreme Court / High Court retirement pair from F1.7 and is examinable for the same reason
- 5 **REMOVAL - Article 317, and this is the distinctive provision**. A Chairman or member of a Public Service Commission - **Union OR State** - shall be removed from office **only by ORDER OF THE PRESIDENT** on the ground of **MISBEHAVIOUR, AFTER THE SUPREME COURT, ON REFERENCE BY THE PRESIDENT, HAS REPORTED that he ought to be removed**

Article 317 is the most important provision in this session, and the reason is structural. A **State PSC** member is appointed by the **Governor** but can be removed only by the **PRESIDENT**, and only after a **Supreme Court inquiry**. **So the State Government that appoints cannot remove.** That is a deliberate insulation of the State PSC from the State Government - exactly the same logic as **Article 235** vesting control of the subordinate judiciary in the High Court rather than the State Government (F1.7), and as **Article 243K's** High-Court-judge removal protection for the State Election Commissioner (F1.9).

The President may also SUSPEND a member pending the Supreme Court's report.

- 1 **Functions - Article 320**: to **conduct examinations** for appointments to the services; to advise on matters of **recruitment methods, promotions and transfers, disciplinary matters**, and claims for costs and pensions. **Note that the Commission's advice on disciplinary matters is ADVISORY - the Government may depart from it, but must record reasons and lay the case before Parliament or the State Legislature**
- 2 **Article 321** - Parliament or a State Legislature may **extend** the Commission's functions
- 3 **Article 322** - **expenses of the Commission are CHARGED on the Consolidated Fund** - the F1.5 device again, protecting independence
- 4 **Article 323** - the Commission presents an **ANNUAL REPORT** to the President or Governor, who causes it to be **laid before Parliament or the State Legislature together with a memorandum explaining any non-acceptance of advice**

Note that the APFC post you are competing for is recruited through the UPSC, in a combined Recruitment Test with EO/AO posts. **So Article 320 is the provision under which your own examination is conducted**, and Article 315 is the article that created the body conducting it.

MUST MASTER · ARTICLE 148-151 - THE COMPTROLLER AND AUDITOR GENERAL

Dr Ambedkar described the CAG as "**probably the most important officer under the Constitution of India**", and the description is worth remembering because examiners quote it.

- 1 **Article 148** - There shall be a **Comptroller and Auditor-General of India, appointed by the PRESIDENT by warrant under his hand and seal**
- 2 **Removal: only in like manner and on the like grounds as a JUDGE OF THE SUPREME COURT** - the same double-majority address on proved misbehaviour or incapacity
- 3 **Term: six years or until the age of 65, whichever is earlier** (prescribed by statute)
- 4 **He is NOT eligible for further office** under the Government of India or of any State after ceasing to hold office - an unusual and deliberate bar, designed to remove any incentive to please the Government he audits
- 5 **Salary and administrative expenses are CHARGED on the Consolidated Fund**
- 6 **Article 149** - duties and powers as **Parliament may by law prescribe** - the **CAG's (Duties, Powers and Conditions of Service) Act 1971**
- 7 **Article 150** - the **form of accounts** of the Union and States shall be as the President may prescribe **on the CAG's advice**
- 8 **Article 151 - AUDIT REPORTS:** the CAG's reports relating to the Union accounts are submitted to the **PRESIDENT**, who causes them to be **laid before each House of Parliament**; reports relating to a State are submitted to the **GOVERNOR**, who causes them to be laid before the **State Legislature**

THE CRITICAL POINT ABOUT THE NAME, and it is a genuine constitutional criticism worth being able to state. The office is called "**Comptroller and Auditor General**", but **in India the CAG performs only the AUDITOR function, not the COMPTROLLER function.**

- 1 A **comptroller** controls expenditure at source - no money leaves the treasury without his authorisation. **The British Comptroller and Auditor General does this**
- 2 **India's CAG has NO control over the issue of money from the Consolidated Fund.** Departments draw money on the authority of the **Appropriation Act (F1.5)**, and the CAG **audits AFTERWARDS**
- 3 **So the audit is ex post facto, not a pre-audit control** - and the "Comptroller" in the title is, in the Indian context, historical rather than descriptive

The relationship to Parliament, which closes the F1.5 loop. The CAG's reports go to the President, who lays them before Parliament, where they are examined by the **PUBLIC ACCOUNTS COMMITTEE** - the committee of 22 members chaired by convention by an **Opposition MP** since 1967. **So the accountability chain is: departments spend under the Appropriation Act → the CAG audits → the report is laid before Parliament → the PAC examines it and reports → the department answers.** The CAG is sometimes described as "**the friend, philosopher and guide of the Public Accounts Committee**" for this reason.

And the point that connects to your own organisation. The CAG audits **all receipts and expenditure of the Union and States**, and also the accounts of **bodies substantially financed from Union or State revenues**. **EPFO's accounts fall within the CAG's audit purview**, and the audit findings on provident fund administration reach Parliament through exactly the chain above. **So an APFC's work is ultimately auditable by the CAG and answerable, through the Ministry, to the PAC.**

CHECK YOURSELF · SESSION 2

- 1 Who appoints UPSC members, and who appoints State PSC members?
- 2 What is the only composition requirement the Constitution prescribes?
- 3 Give the retirement ages for UPSC and State PSC members
- 4 State Article 317 precisely. Why is it structurally significant that a State PSC member is removed by the President?
- 5 Is UPSC advice on disciplinary matters binding? What must the Government do if it departs from it?
- 6 Under which article is your own APFC examination conducted?
- 7 How is the CAG appointed and removed, and what post-retirement bar applies?
- 8 Why is the "Comptroller" in the CAG's title not descriptive in India?
- 9 Trace the accountability chain from expenditure to the PAC
- 10 Does the CAG audit EPFO?

3. Session 3 - The Three National Commissions



MUST MASTER · ARTICLES 338, 338A AND 338B

Three parallel commissions, created at different times, and the sequence is examinable because one of them became constitutional only recently.

Commission	Article	Made constitutional by	Composition
National Commission for SCHEDULED CASTES	338	65th Amendment 1990	Chairperson, Vice-Chairperson and three other members
National Commission for SCHEDULED TRIBES	338A	89th Amendment 2003 , splitting the earlier joint commission	Chairperson, Vice-Chairperson and three other members
National Commission for BACKWARD CLASSES	338B	102nd Amendment 2018	Chairperson, Vice-Chairperson and three other members

The history in one paragraph, because the sequence is what gets asked. Originally there was a **Special Officer for Scheduled Castes and Scheduled Tribes** under Article 338, popularly called the **Commissioner for SCs and STs**. The **65th Amendment 1990** replaced him with a **multi-member National Commission for SCs and STs**. The **89th Amendment 2003 SPLIT that body into two** - the National Commission for SCs under Article 338 and a new National Commission for STs under Article 338A. The **National Commission for Backward Classes**, which had existed as a **statutory** body under the **NCBC Act 1993** (enacted following **Indra Sawhney, 1992**), was given **constitutional status by the 102nd Amendment 2018** as Article 338B.

So the NCBC is the newest of the three, and the key fact is that it moved from STATUTORY to CONSTITUTIONAL in 2018. A question asking which of these is a statutory body is testing whether you know that change - **after 2018 all three are constitutional.**

Members are appointed by the President by warrant under his hand and seal, and conditions of service and tenure are as the President determines by rule.

Functions - common to all three:

- 1 **INVESTIGATE and MONITOR** all matters relating to the safeguards provided for the respective group
- 2 **INQUIRE into specific complaints** of deprivation of rights
- 3 **PARTICIPATE IN and ADVISE ON** planning for socio-economic development, and evaluate progress
- 4 **PRESENT ANNUAL REPORTS to the PRESIDENT**, who lays them before **each House of Parliament with a memorandum on action taken and reasons for non-acceptance**
- 5 **While investigating, the Commission has ALL THE POWERS OF A CIVIL COURT trying a suit** - summoning witnesses, requiring production of documents, receiving evidence on affidavit, and so on. **This is the same set of powers you exercise under Section 7A**, and recognising the parallel makes the provision familiar rather than new
- 6 **The Union and every State Government shall CONSULT the Commission on all major policy matters** affecting the respective group

One additional point about Article 338B and the 102nd Amendment. The same amendment inserted **Article 342A**, providing that the **President** shall specify the socially and educationally backward classes for each State and Union Territory, and that **PARLIAMENT alone** may thereafter include or exclude classes from that Central List. This raised the question whether States retained the power to identify their own backward classes for State purposes - answered in **Maratha reservation litigation (Jaishri Laxmanrao Patil, 2021)** against the States, and then **restored to the States by the 105th AMENDMENT 2021**, which clarified that States and Union Territories may maintain their own State lists.

The 105th Amendment is a good current-affairs-adjacent fact: it exists because the 102nd Amendment's drafting had inadvertently centralised the identification of backward classes, and Parliament corrected it.

CHECK YOURSELF · SESSION 3

- 1 Give the article and the amendment that made each of the three Commissions constitutional
- 2 Trace the history from the Special Officer under Article 338 to the present three bodies
- 3 Which of the three was most recently made constitutional, and what was it before?
- 4 State the composition common to all three
- 5 Name five functions, and identify the powers the Commission has while investigating
- 6 To whom are annual reports presented, and what must accompany them in Parliament?
- 7 What did Article 342A provide, what problem did it create, and how was it corrected?

4. Session 4 - The Statutory Bodies Most Often Misclassified ★★★★★

4.1 Five bodies candidates wrongly call constitutional

Every one of these is **STATUTORY**, not constitutional, and each is regularly offered as a constitutional body in a wrong option.

Body	Statute	Essentials
NHRC	Protection of Human Rights Act 1993	Chaired by a former CJI or SC Judge . 3 years or 70 . Recommendations ADVISORY . No inquiry into matters over 1 year old. Limited armed-forces jurisdiction
CVC	CVC Act 2003 (originally a 1964 resolution on the Santhanam Committee)	CVC + 2 Commissioners, 4 years or 65 , on a PM + Home Minister + LoP committee. Superintendence over the CBI in corruption cases
Lokpal	Lokpal and Lokayuktas Act 2013	Chairperson + up to 8 members, HALF JUDICIAL, not less than 50% from SC/ST/OBC/minorities/women. 5 years or 70 . Jurisdiction over the PM with exclusions
CIC	RTI Act 2005	Chief + up to 10 Information Commissioners. Session 5
NC for Women	NCW Act 1990	STATUTORY, not constitutional - unlike the SC, ST and Backward Classes Commissions

COMMON UPSC TRAP · THE SINGLE MOST USEFUL FACT IN THIS SESSION

THE SINGLE MOST USEFUL FACT: the National Commission for WOMEN is STATUTORY, while the National Commissions for SCs, STs and Backward Classes are CONSTITUTIONAL. There is no Article for the NCW. A question offering the NCW as a constitutional body is wrong, and a question asking which of a list is **not** constitutional very often has the NCW as the answer. **And note the CBI's status, because it is asked and it surprises people.** The **Central Bureau of Investigation is NEITHER constitutional NOR created by its own statute** - it was established by a **Home Ministry resolution in 1963** and derives its police powers from the **Delhi Special Police Establishment Act 1946**. So the CBI is an executive body operating under a **1946 Act**, which is why its jurisdiction in a State requires that State's **general consent**, and why withdrawal of general consent by several States became a live controversy.

KNOW · A CONSOLIDATED CLASSIFICATION TABLE FOR REVISION

Category	Bodies
CONSTITUTIONAL	Election Commission (324) · UPSC and State PSCs (315) · CAG (148) · Finance Commission (280) · Attorney General (76) · Advocate General (165) · GST Council (279A) · Inter-State Council (263) · NC for SCs (338) · NC for STs (338A) · NC for Backward Classes (338B) · State Election Commission (243K) · State Finance Commission (243-I)
STATUTORY	NHRC · CVC · Lokpal and Lokayuktas · Central and State Information Commissions · National Commission for WOMEN · EPFO · ESIC · Zonal Councils · National Green Tribunal · SEBI · TRAI · CAT and State ATs · CGIT
EXECUTIVE	NITI Aayog · CBI (Home Ministry resolution 1963, powers under the 1946 Act) · Labour Bureau · DGMS · DGFASLI · Directorate General of Employment

Note where your own organisation sits: EPFO is STATUTORY, and so is the CGIT that hears appeals from your orders. Neither is constitutional. **But EPFO is "State" under Article 12** - and the two facts are entirely compatible, as F1.3 established: **being "State" for the purposes of Part III is about performing public functions, not about the instrument that created the body.** **That distinction is worth stating explicitly because candidates conflate them.** A body can be **statutory in origin** and **"State" under Article 12** at the same time; conversely, a purely executive body performing public functions may also be "State". **The classification in this chapter is about the SOURCE of a body's existence; Article 12 is about the NATURE of its functions.**

CHECK YOURSELF · SESSION 4

- 1 Name the statute creating the NHRC, CVC, Lokpal, CIC and NCW
- 2 Who must chair the NHRC, and are its recommendations binding?
- 3 How old may a complaint be for the NHRC to inquire into it?
- 4 What is the CVC's composition and its relationship to the CBI?
- 5 How many Lokpal members, and what proportion must be judicial?
- 6 Which National Commission is statutory rather than constitutional?
- 7 What is the CBI's legal basis, and why does general consent matter?
- 8 Is EPFO constitutional or statutory? Is it "State" under Article 12? Reconcile the two answers

5. Session 5 - The Right to Information Act 2005



START FROM ZERO · WHERE THE RIGHT COMES FROM

The right to information is not in the text of Part III. It was read into Article 19(1)(a) - freedom of speech and expression - by the Supreme Court, on the reasoning that **a citizen cannot meaningfully exercise freedom of speech without access to the information on which opinions are formed**. The leading cases are **State of UP v Raj Narain (1975)** and **SP Gupta (1981)**, which you met in F1.7 as a locus standi case.

So RTI is a statutory implementation of a judicially recognised Fundamental Right - which is why an RTI question can appear either in this chapter or in the Fundamental Rights chapter, and why the connection is worth stating.

The Act's own preamble describes its purpose as setting out a practical regime to **secure access to information under the control of public authorities, in order to promote TRANSPARENCY AND ACCOUNTABILITY in the working of every public authority** - and it repealed the earlier **Freedom of Information Act 2002**, which had never been brought into force.

The RTI Act came into force in 2005, and its scheme rests on three ideas: **a wide definition of what counts as information, a wide definition of who must supply it, and short mandatory time limits with a designated officer personally responsible**.

MUST MASTER · THE ACT'S MACHINERY - THE PROVISIONS THAT GET ASKED

- 1 **"INFORMATION" - s.2(f)** - any material in any form, including records, documents, memos, e-mails, opinions, advices, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models and data material held in any electronic form
- 2 **"RIGHT TO INFORMATION" - s.2(j)** - includes the right to **inspect works, documents and records**; take **notes, extracts or certified copies**; take **certified samples of material**; and obtain information in **electronic form** including diskettes, floppies, tapes and video cassettes
- 3 **"PUBLIC AUTHORITY" - s.2(h)** - any authority, body or institution of self-government **established or constituted by or under the Constitution, by any law made by Parliament or a State Legislature, or by notification or order of the appropriate Government** - and includes bodies **owned, controlled or substantially financed**, and **non-government organisations substantially financed**, directly or indirectly by government funds

EPFO is plainly a public authority under s.2(h), being a body constituted by a law made by Parliament. **So the Act applies to your own office directly**, and Session 5's closing box works out what that means in practice.

- 1 **PUBLIC INFORMATION OFFICER (PIO)** - every public authority must designate PIOs at all administrative units, and **Assistant PIOs** at the sub-district level to receive applications
- 2 **TIME LIMITS, which are the most examined element:**
- 3 **THIRTY DAYS** for a decision on a request, ordinarily
- 4 **FORTY-EIGHT HOURS** where the information concerns the **LIFE OR LIBERTY of a person**
- 5 **THIRTY-FIVE DAYS** where the application is made through an Assistant PIO (30 days plus 5)
- 6 **FORTY DAYS** where a **third party's** interests are involved
- 7 **Failure to decide within the period is DEEMED A REFUSAL**
- 8 **FEE** - a prescribed application fee, and **no fee for persons BELOW THE POVERTY LINE**. Where the authority fails to reply within the time limit, **the information must be provided FREE OF CHARGE**
- 9 **s.4 - PROACTIVE DISCLOSURE**. Every public authority must **maintain records, publish specified categories of information suo motu**, and update it. **The Act's design intention was that s.4 disclosure would reduce the need for individual applications** - and the widely accepted criticism is that s.4 has been the least well implemented provision of the Act
- 10 **PENALTY - s.20**: a PIO who without reasonable cause refuses an application, fails to furnish information within the time specified, malafide denies a request, or knowingly gives incorrect information, is liable to a penalty of **Rs 250 per day up to a maximum of Rs 25,000**, and to disciplinary action. **The penalty is personal to the officer, not on the authority - which is what gives the Act its practical bite**

MUST MASTER · EXEMPTIONS AND THE APPELLATE STRUCTURE

EXEMPTIONS - s.8. Information need not be disclosed where disclosure would:

- 1 prejudicially affect the **sovereignty and integrity of India**, security, strategic, scientific or economic interests, or relations with a foreign State
- 2 be **expressly forbidden by a court** or constitute contempt
- 3 cause a **breach of privilege** of Parliament or a State Legislature
- 4 harm the competitive position of a third party by disclosing **commercial confidence, trade secrets or intellectual property**, unless the larger public interest warrants it
- 5 be available to a person in his **fiduciary relationship**, unless the larger public interest warrants it
- 6 endanger the **life or physical safety** of any person, or identify a confidential source
- 7 impede the **process of investigation** or apprehension of offenders
- 8 relate to **Cabinet papers**, including records of deliberations of the Council of Ministers - **though the decisions and the reasons must be made public after the matter is complete**
- 9 relate to **PERSONAL INFORMATION** with no relationship to any public activity, or which would cause **unwarranted invasion of privacy**, unless the larger public interest warrants it

Two overriding provisions that qualify the exemptions:

- 1 **s.8(2)** - a public authority **MAY allow access notwithstanding the Official Secrets Act 1923** or any exemption, **if the PUBLIC INTEREST IN DISCLOSURE OUTWEIGHS THE HARM to the protected interests**. **So the exemptions are not absolute; public interest can override most of them**
- 2 **s.8(3)** - information relating to any occurrence, event or matter which has taken place **MORE THAN TWENTY YEARS** before shall ordinarily be provided
- 3 **s.24 - intelligence and security organisations** listed in the Second Schedule are exempt, **BUT information on allegations of CORRUPTION and HUMAN RIGHTS VIOLATIONS is NOT exempt** even for them. **This carve-out is frequently tested**

THE APPELLATE STRUCTURE - three tiers:

- 1 **FIRST APPEAL** - to an officer **senior in rank to the PIO** within the same public authority, within **THIRTY DAYS** of the decision or the expiry of the time limit
- 2 **SECOND APPEAL** - to the **CENTRAL INFORMATION COMMISSION** or the **STATE INFORMATION COMMISSION**, within **NINETY DAYS**
- 3 Thereafter, a writ petition to the **High Court under Article 226** - the F1.7 route

The Commissions:

- 1 **CIC** - a **Chief Information Commissioner and up to TEN Information Commissioners**, appointed by the President on the recommendation of a committee of the **PRIME MINISTER, the LEADER OF THE OPPOSITION in the Lok Sabha, and a UNION CABINET MINISTER nominated by the PM**
- 2 **SIC** - a **State Chief Information Commissioner and up to ten Commissioners**, appointed by the Governor on a committee of the **Chief Minister, the Leader of the Opposition in the Legislative Assembly, and a State Cabinet Minister**
- 3 **The Commissions have the powers of a civil court** in respect of summoning, discovery and inspection, and may **require the public authority to take specified steps**, impose penalties and award compensation

THE 2019 AMENDMENT, and it is a real change worth knowing. The **RTI (Amendment) Act 2019** removed the fixed **five-year** term and the salary parity with the Election Commission that Information Commissioners had enjoyed, and provided instead that **term and conditions of service shall be as PRESCRIBED BY THE CENTRAL GOVERNMENT**. The criticism is that making **tenure and salary dependent on executive rules weakens the Commissions' independence** - the same argument you saw about tribunal members in F1.7's Madras Bar Association line. **State the change and the criticism neutrally; that is what an interview rewards.**

MUST MASTER · RTI APPLIED TO YOUR OWN DESK

This is the chapter's connection to the job, and it is direct rather than notional.

EPFO is a public authority under s.2(h). So:

- 1 **Every EPFO office has designated PIOs and Appellate Authorities**, and applications are received and answered under the thirty-day rule
- 2 **An employer whose dues you have determined under Section 7A can seek information about the proceedings by RTI** - the inspection report, the file notings, the basis of computation
- 3 **A member can seek information about his own account**, the status of a claim, or the reasons for a rejection
- 4 **The PIO's liability under s.20 is PERSONAL** - up to **Rs 250 a day, maximum Rs 25,000**, plus disciplinary action

Now the two points that matter most for how you should work, and they close the loop with F3.4:

FIRST, the discipline of a reasoned order is also an RTI discipline. F3.4 taught that a Section 7A order must frame issues, record the employer's contentions, and show the computation - because a High Court reviewing it under Article 226 will ask whether it discloses reasons. **RTI adds a second reader.** An order and a file that are complete, reasoned and self-explanatory can be disclosed without embarrassment. **A file whose conclusion cannot be explained from its own contents is a problem twice over - on appeal and on an RTI application.**

SECOND, "personal information" and the fiduciary exemption require care rather than reflex. A member's provident fund details are **personal information** in relation to a stranger's application, and **s.8(1)(j)** protects them. But they are emphatically **not** exempt from **the member's own** application about **his own account** - and refusing a member his own information by invoking s.8(1)(j) is a misuse of the exemption. **Equally, the fiduciary exemption under s.8(1)(e) cannot be used to withhold from an employer the basis on which he has been assessed**, because that is the very material he is entitled to under natural justice.

So the correct instinct is: exemptions protect third parties and genuinely confidential material; they do not protect the officer from having to explain his own reasoning. That sentence is both good RTI practice and the natural conclusion of everything F3.4 taught about writing orders.

CHECK YOURSELF · SESSION 5

- 1 From which Fundamental Right was the right to information derived, and in which cases?
- 2 Define "public authority" and confirm whether EPFO is one
- 3 State all four time limits, and the consequence of failing to decide
- 4 When must information be provided free of charge?
- 5 What does s.4 require, and why is it considered the least implemented provision?
- 6 State the s.20 penalty and note on whom it falls
- 7 Name six exemptions under s.8
- 8 State s.8(2), s.8(3) and the s.24 carve-out
- 9 Set out the three-tier appellate structure with time limits
- 10 What did the 2019 amendment change, and what is the criticism?
- 11 Explain why a reasoned Section 7A order is also good RTI practice
- 12 May a member be refused his own account information under s.8(1)(j)?

6. Graded Practice - 42 Questions ★★★★★

6.1 Level 1 - Recognition

Q. 1. The Election Commission is established by

(a) Article 315 (b) Article 324 (c) Article 338 (d) an Act of Parliament

Q. 2. The Election Commission has been a three-member body since

(a) 1950 (b) 1989 (c) 1993 (d) 2003

Q. 3. The Chief Election Commissioner may be removed

(a) at the President's pleasure (b) in like manner and on like grounds as a Judge of the Supreme Court (c) on the Prime Minister's recommendation (d) by the Election Commission itself

Q. 4. Under the 2023 Act, the Selection Committee for Election Commissioners consists of the

(a) PM, Leader of the Opposition and Chief Justice of India (b) PM, a Union Cabinet Minister and the Leader of the Opposition (c) President, PM and CJI (d) PM and the CJI only

Q. 5. The Union Public Service Commission is established by

(a) Article 148 (b) Article 315 (c) Article 324 (d) Article 338

Q. 6. A member of a State Public Service Commission may be removed by the

(a) Governor (b) Chief Minister (c) President, after a Supreme Court report (d) State Legislature

Q. 7. The retirement age for a UPSC member is

(a) 60 (b) 62 (c) 65 (d) 70

Q. 8. The retirement age for a State PSC member is

(a) 60 (b) 62 (c) 65 (d) 70

Q. 9. The Comptroller and Auditor General is appointed under

(a) Article 148 (b) Article 149 (c) Article 151 (d) Article 280

Q. 10. The CAG's duties and powers are prescribed by

(a) the Constitution exhaustively (b) an Act of Parliament, the CAG's (DPC) Act 1971 (c) Presidential order (d) the Public Accounts Committee

Q. 11. The National Commission for Scheduled Castes is established under

(a) Article 338 (b) Article 338A (c) Article 338B (d) Article 342A

Q. 12. The National Commission for Scheduled Tribes was created by the

(a) 65th Amendment (b) 89th Amendment (c) 102nd Amendment (d) 105th Amendment

Q. 13. The National Commission for Backward Classes was given constitutional status by the

(a) 65th Amendment (b) 89th Amendment (c) 102nd Amendment (d) 105th Amendment

Q. 14. The NHRC is established by

(a) Article 338 (b) the Protection of Human Rights Act 1993 (c) the Constitution (d) executive resolution

Q. 15. The National Commission for Women is

(a) a constitutional body under Article 338C (b) a statutory body under the NCW Act 1990 (c) an executive body (d) a judicial body

Q. 16. The RTI Act came into force in

(a) 2002 (b) 2003 (c) 2005 (d) 2019

Q. 17. The ordinary time limit for a decision on an RTI request is

(a) 15 days (b) 30 days (c) 45 days (d) 60 days

Q. 18. Where information concerns the life or liberty of a person, it must be provided within

(a) 24 hours (b) 48 hours (c) 7 days (d) 15 days

6.2 Level 2 - Understanding

Q. 19. Elections to panchayats and municipalities are conducted by

(a) the Election Commission of India under Article 324 (b) the State Election Commission under Articles 243K and 243ZA (c) the State Government directly (d) the district collector

Q. 20. Which one of the following correctly states the removal protection in the Election Commission?

(a) All three Commissioners have judge-like protection (b) The CEC has judge-like protection; other Commissioners may be removed on the CEC's recommendation (c) None has any protection (d) Only the other Commissioners have protection

Q. 21. Decisions of the Election Commission where members differ are taken

(a) by the CEC alone (b) by majority, the three being of equal status (c) by the President (d) by the Law Ministry

Q. 22. The constitutional requirement as to the composition of a Public Service Commission is that

(a) all members must be judges (b) as nearly as may be, one-half of the members must have held office for at least ten years under the Government of India or a State (c) the Chairman must be a civil servant (d) there must be exactly five members

Q. 23. Article 317's significance is that

(a) the Governor may remove a State PSC member (b) a State PSC member is removable only by the President after a Supreme Court report, so the appointing State Government cannot remove him (c) the Supreme Court appoints PSC members (d) removal requires a parliamentary resolution

Q. 24. UPSC advice on disciplinary matters is

(a) binding on the Government (b) advisory, but departures must be recorded and laid before the legislature (c) binding only for Group A posts (d) not required at all

Q. 25. The expenses of a Public Service Commission and the salary of the CAG are

(a) voted annually by Parliament (b) charged on the Consolidated Fund, and so not voted (c) met from the Contingency Fund (d) paid by the States

Q. 26. The "Comptroller" in the CAG's title is not descriptive in India because

(a) the office was never filled (b) the CAG has no control over the issue of money from the Consolidated Fund and audits only after expenditure (c) Parliament abolished the function (d) the Finance Ministry performs the audit

Q. 27. The CAG has been described as the friend, philosopher and guide of the

(a) Finance Commission (b) Public Accounts Committee (c) Estimates Committee (d) Union Cabinet

Q. 28. While investigating, the National Commissions under Articles 338, 338A and 338B have

(a) no coercive powers (b) all the powers of a civil court trying a suit (c) the powers of a criminal court (d) only advisory powers

Q. 29. The 105th Amendment 2021 was enacted to

(a) create the NCBC (b) restore to States the power to maintain their own lists of socially and educationally backward classes (c) abolish reservation (d) merge the SC and ST Commissions

Q. 30. The Central Bureau of Investigation is

(a) a constitutional body (b) created by its own Act of Parliament (c) an executive body created by a 1963 Home Ministry resolution, deriving police powers from the Delhi Special Police Establishment Act 1946 (d) a statutory body under the CVC Act 2003

Q. 31. EPFO is a statutory body and also "State" under Article 12. These two facts are

(a) contradictory (b) compatible, because the classification concerns the SOURCE of a body's existence while Article 12 concerns the NATURE of its functions (c) both wrong (d) the same proposition stated twice

Q. 32. The right to information was derived from

(a) Article 14 (b) Article 19(1)(a) (c) Article 21 (d) Article 32

Q. 33. Under section 20 of the RTI Act, the penalty on a defaulting PIO is

(a) Rs 100 per day up to Rs 10,000 (b) Rs 250 per day up to Rs 25,000 (c) Rs 500 per day up to Rs 50,000 (d) a fixed Rs 25,000

6.3 Level 3 - Recruitment Test standard**Q. 34. Match List-I with List-II and select the correct answer using the code below:**

List-I (Body)	List-II (Basis)
A. Election Commission	1. Article 148
B. UPSC	2. Article 315
C. CAG	3. Article 324
D. NHRC	4. Protection of Human Rights Act 1993

(a) A-3 B-2 C-1 D-4 (b) A-3 B-1 C-2 D-4 (c) A-1 B-2 C-3 D-4 (d) A-3 B-2 C-4 D-1

Q. 35. Which one of the following is not a constitutional body?

(a) National Commission for Scheduled Castes (b) National Commission for Scheduled Tribes (c) National Commission for Backward Classes (d) National Commission for Women

Q. 36. Consider the following statements:

- 1 The National Commission for Backward Classes was a statutory body before 2018.
- 2 The 102nd Amendment gave it constitutional status as Article 338B.
- 3 The 89th Amendment split the earlier joint SC and ST Commission into two.

Which of the above statements are correct?

- (a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 37. Consider the following statements about section 24 of the RTI Act:

- 1 Intelligence and security organisations listed in the Second Schedule are exempt from the Act.
- 2 Information relating to allegations of corruption is nevertheless not exempt.
- 3 Information relating to human rights violations is nevertheless not exempt.

Which of the above statements are correct?

- (a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 38. Under the RTI Act, a second appeal lies to the Information Commission within

- (a) 30 days (b) 60 days (c) 90 days (d) 120 days

Q. 39. The RTI (Amendment) Act 2019

(a) abolished the Information Commissions (b) removed the fixed five-year term and salary parity, leaving term and conditions to be prescribed by the Central Government (c) extended the time limit to 60 days (d) exempted EPFO from the Act

Q. 40. Information relating to a matter that took place more than twenty years earlier

(a) is permanently exempt (b) shall ordinarily be provided, under section 8(3) (c) requires Cabinet approval (d) attracts a higher fee

Q. 41. An employer assessed under Section 7A applies under the RTI Act for the basis of the computation. The correct response is that

(a) it is exempt as information held in a fiduciary capacity (b) it should be disclosed, since the material on which he was assessed is what natural justice already entitles him to (c) it is exempt as personal information (d) it is exempt as an investigation record permanently

Q. 42. A member applies under the RTI Act for details of his own provident fund account. Section 8(1)(j) on personal information

(a) permits refusal, the details being personal information (b) does not permit refusal, since the exemption protects third parties and not the applicant's own information (c) permits refusal only if the employer objects (d) requires the Information Commission's prior permission

7. Answers and Explanations

7.1 Level 1

Q	Ans	Explanation
1	b	Article 324
2	c	1993 - single-member 1950-89, briefly multi-member 1989, single again 1990, three-member from 1993
3	b	Like a Judge of the Supreme Court - the double-majority address on proved misbehaviour or incapacity

Q	Ans	Explanation
4	b	PM, a Union Cabinet Minister and the Leader of the Opposition - the 2023 Act replaced the CJI (whom Anoop Baranwal had included) with a Cabinet Minister
5	b	Article 315
6	c	President, after a Supreme Court report on reference - Article 317
7	c	65
8	b	62 - the 65/62 pair mirrors the Supreme Court / High Court pair
9	a	Article 148
10	b	The CAG's (Duties, Powers and Conditions of Service) Act 1971 , under Article 149
11	a	Article 338
12	b	89th Amendment 2003 , splitting the joint commission
13	c	102nd Amendment 2018
14	b	Protection of Human Rights Act 1993 - statutory, not constitutional
15	b	Statutory, under the NCW Act 1990 - unlike the SC, ST and Backward Classes Commissions
16	c	2005 . The Freedom of Information Act 2002 was never brought into force
17	b	30 days
18	b	48 hours

7.2 Level 2

Q	Ans	Explanation
19	b	State Election Commission under Arts 243K and 243ZA . Article 324 conspicuously does NOT cover local body elections
20	b	The asymmetry is the point - judge-like protection for the CEC only, with the other two removable on his recommendation despite equal decision-making power
21	b	By majority; the three are of equal status . The CEC has no casting vote
22	b	One-half with ten years' government service - the only composition requirement in the Constitution
23	b	Removal only by the President after a Supreme Court report - so the appointing State Government cannot remove, insulating the State PSC. The same logic as Art 235 and Art 243K
24	b	Advisory, with departures recorded and laid before the legislature - Article 323
25	b	Charged on the Consolidated Fund - discussed but not voted, the F1.5 independence device
26	b	No control over the issue of money; audit is ex post facto . The British CAG does exercise the comptroller function
27	b	Public Accounts Committee - the F1.5 loop closed
28	b	All the powers of a civil court trying a suit - the same set an APFC exercises under s.7A
29	b	Restored the States' power to maintain their own backward-class lists, correcting the 102nd Amendment's inadvertent centralisation
30	c	Executive body from a 1963 Home Ministry resolution, powers under the 1946 Act - which is why State general consent matters

Q	Ans	Explanation
31	b	Compatible. Classification is about the source of existence; Article 12 is about the nature of the functions performed
32	b	Article 19(1)(a) - Raj Narain 1975 and SP Gupta 1981
33	b	Rs 250 per day, maximum Rs 25,000 , and the liability is personal to the PIO

7.3 Level 3

Q	Ans	Explanation
34	a	A-3 EC = Art 324; B-2 UPSC = Art 315; C-1 CAG = Art 148; D-4 NHRC = Protection of Human Rights Act 1993
35	d	National Commission for WOMEN - statutory under the 1990 Act. The other three are constitutional under Arts 338, 338A and 338B
36	d	All three correct - the NCBC's move from statutory to constitutional in 2018, and the 89th Amendment's split in 2003
37	d	All three correct. The corruption and human-rights carve-out from the s.24 exemption is frequently tested
38	c	90 days to the Information Commission; the first appeal is within 30 days to a senior officer
39	b	Removed the fixed five-year term and salary parity , leaving them to Central Government rules - criticised as weakening independence, the same argument as in the tribunals line
40	b	Shall ordinarily be provided - section 8(3)
41	b	Disclose. The fiduciary exemption cannot be used to withhold from a party the very basis on which he was assessed, which natural justice already requires be disclosed to him
42	b	No refusal. Section 8(1)(j) protects third parties from unwarranted invasion of privacy; it does not shield a person's own information from himself

8. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F1.11 - BODIES AND RTI

THE TECHNIQUE - THE THREE-FACT RULE (F2.10) every institution = **NATURE** (constitutional / statutory / executive) + **PARENT** + **ONE distinctive number or function** · it answered **FIVE 2023 questions** (CAMPa, BIRAC, eSanjeevani, DEA, National Health Policy 2.5% of GDP) · **getting the CATEGORY right is usually worth more than the detail**

CONSTITUTIONAL Election Commission 324 · UPSC and State PSCs 315 · CAG 148 · Finance Commission 280 · Attorney General 76 · Advocate General 165 · GST Council 279A · Inter-State Council 263 · NC for SCs 338 · NC for STs 338A · NC for Backward Classes 338B · State Election Commission 243K · State Finance Commission 243-I

STATUTORY NHRC · CVC · Lokpal · Central and State Information Commissions · **NATIONAL COMMISSION FOR WOMEN** · EPFO · ESIC · CGIT · Zonal Councils · NGT · SEBI · TRAI · CAT
EXECUTIVE NITI Aayog · CBI · Labour Bureau · DGMS · DGFASLI

ELECTION COMMISSION - Art 324 covers Parliament, State Legislatures, President and Vice-President · does **NOT** cover PANCHAYAT and MUNICIPAL elections (those are Arts 243K / 243ZA) · single-member 1950-89, three-member since 1993 · CEC + 2 ECs, **EQUAL** status, decisions by **MAJORITY**, no casting vote · term **6 years or 65** · **THE ASYMMETRY**: the CEC is removable only like a **SUPREME COURT JUDGE**; the other two only on the CEC'S

RECOMMENDATION · Anoop Baranwal 2023 directed a PM + LoP + **CJI** committee; the **2023 Act** substituted PM + a **UNION CABINET MINISTER** + LoP, replacing the CJI · **Model Code of Conduct** is **NOT** statutory - it rests on Art 324 and party consensus

PUBLIC SERVICE COMMISSIONS - Arts 315-323 UPSC members appointed by the **PRESIDENT**; State PSC by the **GOVERNOR** · joint State PSC by **PARLIAMENT** on State resolutions · the only composition rule: as nearly as may be **ONE-HALF** must have 10 years' government service · UPSC 6 years or 65; State PSC 6 years or 62 · **ART 317**: removal **ONLY BY THE PRESIDENT** on **MISBEHAVIOUR**, **AFTER A SUPREME COURT REPORT** - even for a **STATE PSC member**, so the appointing State cannot remove (the same insulation logic as Art 235 and Art 243K) · **Art 320** functions; **advice on disciplinary matters is ADVISORY** with departures recorded and laid before the legislature (Art 323) · **Art 322 expenses CHARGED** on the **Consolidated Fund** · **your own APFC examination is conducted under Art 320** by the body created by Art 315

CAG - Arts 148-151 Ambedkar: "probably the most important officer under the Constitution" · appointed by the **PRESIDENT by warrant**, removable like a **SUPREME COURT JUDGE** · 6 years or 65 · **NOT ELIGIBLE FOR FURTHER OFFICE** under any government afterwards · salary charged on the Consolidated Fund · **Art 149** duties by the CAG's (DPC) Act 1971 · **Art 150** form of accounts on his advice · **Art 151** reports to the **PRESIDENT (Union) / GOVERNOR (State)**, laid before the legislature · **THE NAME IS MISLEADING**: India's CAG performs only the **AUDITOR** function - he has **NO** control over issue of money and audits **EX POST FACTO**, unlike the British CAG · **chain**: departments spend under the Appropriation Act → CAG audits → report laid → PAC examines · "friend, philosopher and guide of the PAC" · EPFO's accounts fall within his purview

THE THREE NATIONAL COMMISSIONS NC for SCs - Art 338 - 65th Amendment 1990 · NC for STs - Art 338A - 89th Amendment 2003 (split the joint body) · NC for Backward Classes - Art 338B - 102nd Amendment 2018 (previously **STATUTORY** under the NCBC Act 1993, following Indra Sawhney 1992) · each: **Chairperson, Vice-Chairperson and THREE other members**, appointed by the **President by warrant** · functions: investigate and monitor safeguards, inquire into complaints, advise on development planning, **annual reports to the PRESIDENT laid before both Houses with an action-taken memorandum** · **ALL THE POWERS OF A CIVIL COURT** while investigating - the same set you exercise under s.7A · governments must **CONSULT** on major policy matters · **Art 342A** (102nd Amdt) centralised backward-class identification, and the **105th AMENDMENT 2021** restored the States' own lists

THE MISCLASSIFIED FIVE NHRC - Protection of Human Rights Act 1993, chaired by a **former CJI or SC Judge, 3 years or 70, recommendations ADVISORY**, cannot inquire into matters over **1 year** old, limited armed-forces jurisdiction · **CVC - CVC Act 2003** (originally **1964 executive resolution** on the **SANTHANAM Committee**), **CVC + 2 Commissioners, 4 years or 65**, appointed on a **PM + Home Minister + LoP** committee, **superintendence over the CBI** in corruption cases · **LOKPAL - Lokpal and Lokayuktas Act 2013**, Chairperson + up to **8 members, HALF JUDICIAL**, not less than **50% from SC/ST/OBC/minorities/women, 5 years or 70**, jurisdiction over the **PM with exclusions** · **CIC - RTI Act 2005** · **NCW - NCW Act 1990** · **THE KEY FACT: the NC for WOMEN is STATUTORY** while the **SC, ST and Backward Classes Commissions are CONSTITUTIONAL** · **CBI = EXECUTIVE**, a **1963 Home Ministry resolution with powers under the DELHI SPECIAL POLICE ESTABLISHMENT ACT 1946** - hence the general-consent controversy **EPFO's OWN POSITION STATUTORY** in origin AND "**State**" under **Art 12 - compatible, not contradictory: classification is about the SOURCE of existence; Art 12 is about the NATURE of the functions**

RTI ACT 2005 derived from **ART 19(1)(a)** in **Raj Narain 1975** and **SP Gupta 1981** · repealed the never-enforced **Freedom of Information Act 2002**

- 1 **s.2(f) INFORMATION** - records, documents, e-mails, opinions, advices, orders, logbooks, contracts, samples, electronic data
- 2 **s.2(j) RIGHT** - inspect works and records, take notes and certified copies, take certified samples, obtain electronic form
- 3 **s.2(h) PUBLIC AUTHORITY** - constituted by or under the Constitution or by any law, and bodies **owned, controlled or SUBSTANTIALLY FINANCED** by government · **EPFO IS A PUBLIC AUTHORITY**
- 4 **TIME LIMITS: 30 DAYS** ordinarily · **48 HOURS** for **LIFE OR LIBERTY** · **35 DAYS** via an **Assistant PIO** · **40 DAYS** where a **THIRD PARTY** is involved · **failure to decide = DEEMED REFUSAL**
- 5 **no fee for persons BELOW THE POVERTY LINE** · **information FREE** if the time limit is missed
- 6 **s.4 PROACTIVE DISCLOSURE** - intended to reduce individual applications; **the least well implemented provision**
- 7 **s.20 PENALTY: Rs 250 PER DAY up to Rs 25,000, PERSONAL to the PIO**, plus disciplinary action
- 8 **s.8 EXEMPTIONS**: sovereignty and security · court prohibition or contempt · breach of privilege · commercial confidence and trade secrets · fiduciary relationship · endangering life or safety or identifying a source · impeding investigation · **Cabinet papers (but decisions and reasons public once complete)** · **personal information / unwarranted invasion of privacy**
- 9 **s.8(2) PUBLIC INTEREST CAN OVERRIDE** the exemptions and even the **Official Secrets Act 1923** · **s.8(3) matters over 20 YEARS** old shall ordinarily be provided
- 10 **s.24: listed intelligence and security organisations are exempt, BUT NOT as to CORRUPTION and HUMAN RIGHTS VIOLATIONS**
- 11 **APPEALS: FIRST** to a senior officer within **30 DAYS** · **SECOND** to the **CIC/SIC** within **90 DAYS** · then **Art 226**
- 12 **CIC: Chief + up to TEN Commissioners**, appointed on a **PM + LoP + Union Cabinet Minister** committee · **SIC: CM + LoP in the Assembly + a State Cabinet Minister** · Commissions have **civil-court powers**, may direct steps, impose penalties and award compensation
- 13 **RTI (AMENDMENT) ACT 2019 removed the fixed 5-year term and salary parity, leaving term and conditions to CENTRAL GOVERNMENT RULES** - criticised as weakening independence, the same argument as the tribunals line in F1.7

RTI AT YOUR DESK every EPFO office has **PIOs and Appellate Authorities** · an employer may seek the **inspection report, file notings and basis of computation** · a member may seek **his own account information** · **TWO RULES: (1) a reasoned Section 7A order is also good RTI practice - a file whose conclusion cannot be explained from its own contents is a problem twice over, on appeal and on RTI; (2) exemptions protect THIRD PARTIES and genuinely confidential material, NOT the officer from explaining his own reasoning · s.8(1)(j) cannot be used to deny a member HIS OWN information, and s.8(1)(e) cannot be used to withhold from an employer the basis of his own assessment**

9. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F1.11 · BODIES AND RTI

THREE-FACT RULE: NATURE · PARENT · ONE DISTINCTIVE FACT

CONSTITUTIONAL: EC 324 · UPSC 315 · CAG 148 · FC 280 · AG 76 · GST Council 279A · ISC 263 · NCSC 338 · NCST 338A · NCBC 338B

STATUTORY: NHRC · CVC · LOKPAL · CIC · NCW · EPFO · ESIC · CGIT

EXECUTIVE: NITI AAYOG · CBI · Labour Bureau · DGMS · DGFASLI

EC: Art 324 · NOT local elections · 3-member since 1993 · MAJORITY decisions · 6 yrs or 65

CEC removable LIKE AN SC JUDGE · other ECs only on the CEC'S RECOMMENDATION

2023 Act committee: PM + UNION CABINET MINISTER + LoP (CJI replaced)

MCC is NOT statutory

UPSC 315 · one-half with 10 yrs' service · UPSC 65, State PSC 62

ART 317: removal ONLY by PRESIDENT after SUPREME COURT REPORT — even for State PSC

CAG 148 · removable like an SC judge · NO further office afterwards · 1971 DPC Act

CAG IS AUDITOR ONLY — no comptroller function, audits EX POST FACTO

CAG → PRESIDENT → PARLIAMENT → PAC · audits EPFO too

NCSC 338 (65th 1990) · NCST 338A (89th 2003) · NCBC 338B (102nd 2018)

All three: Chair + Vice-Chair + 3 members · CIVIL COURT POWERS · reports to PRESIDENT

105th AMDT 2021 restored STATE backward-class lists

NCW IS STATUTORY (1990 Act) — the odd one out

CBI = 1963 resolution + DSPE ACT 1946 — hence general consent

EPFO = STATUTORY in origin AND "STATE" under Art 12 — compatible

RTI from ART 19(1)(a) · Raj Narain 1975, SP Gupta 1981 · in force 2005

TIME LIMITS: 30 DAYS · 48 HOURS life/liberty · 35 via APIO · 40 third party · no reply = DEEMED REFUSAL

s.20 PENALTY Rs 250/DAY, MAX Rs 25,000, PERSONAL TO THE PIO

s.8(2) PUBLIC INTEREST OVERRIDES · s.8(3) 20 YEARS · s.24 NOT for CORRUPTION or HUMAN RIGHTS

APPEALS: 30 DAYS senior officer · 90 DAYS to CIC/SIC · then Art 226

CIC: Chief + up to 10 · 2019 AMDT removed fixed 5-yr term and salary parity

A REASONED 7A ORDER IS ALSO GOOD RTI PRACTICE

EXEMPTIONS PROTECT THIRD PARTIES, NOT THE OFFICER'S REASONING